



Elder rights

Elder rights are the rights of older adults (usually those in the seventh decade of life or older, although this definition is disputed), who in various countries are not recognized as a constitutionally protected class,^[1] yet face discrimination across many aspects of society due to their age.

Common rights issues faced by elders include age-related job discrimination (such as forced age of retirement), lack of access to medical treatments, because of age or age-related obstacles, societal perceptions of ability/disability due to age,^[1] and vulnerability to abuse, including financial, physical, psychological, social, and sexual^[2] abuse, because of diminished capacity and lack of access to/ability to use technology.^[3]

One of the earliest efforts by the US federal government to protect financial rights of elders was the establishment of Social Security benefits via the Social Security Act in 1935, providing income to retired individuals who qualify.^[4]

Defining elder rights

In 1991, the UNHRC General Assembly established principles to guide and encourage the development of government programs that will protect older persons' rights by ensuring the independence, participation, care, self-fulfillment and dignity of older people.^[5]

Aging and ageism

Upholding and protecting the rights of older adults is vital to addressing problems related to ageing and ageism. With the rapid growth of population of older people globally,^[6] there has been international efforts to focus on issues associated with ageing and protection of the elderly in the past decade.^[7] As a result, ageism is recognized and studied as a global issue, an example of which is a survey of tens of thousands of people in more than 50 countries that revealed the majority of the participants as having moderate to high ageist attitudes.^[8] Identifying and combating the widespread prevalence of ageism is essential to promoting population health based on the growing evidence of harmful impacts of ageism on the health of older people.^[9]

Elder rights movement

As defined by Nina Kohn, an elder rights movement is the "collective effort [of] organizations and individuals... (coming) together around the common goal of transforming social, political, and legal structures to allow older adults to fully exercise their civil and human rights and liberties."^[10] The concept of a unique set of needs and rights of the elderly started in 1930s, during the Great Depression, with the main focus being on the need for a national pension program to provide financial security to the

no longer working elderly.^[11] Numerous rival plans (the Townsend Plan, the McClain Movement, the Ham and Eggs Movement) were made to address the issue. Eventually, as part of Franklin Delano Roosevelt's New Deal, the Social Security Act was passed to meet the need.

As the population aged and the aged grew wealthier throughout the second half of the twentieth century, their political influence increased.^[11] Organizations such as the American Association of Retired Persons and government bodies such as the Administration on Aging were created to meet their needs.^[12] Issues far beyond simple financial security became the focus – Maggie Kuhn, angered over her mandatory retirement at 65, launched the Gray Panthers in 1970. Since its establishment, the Gray Panthers have advocated for affordable, intergenerational housing and a single-payer healthcare system.^[13] Today, the Grey Panthers leads the Stakeholder Group on Aging, an organization it co-founded, which aims to create an international network of older persons and activists.^[14] The National Elder Law Foundation was created out of concern that the elderly might have unique legal needs.^[15] The 2006 reauthorization of the Older Americans Act included a project called Choices for Independence, to develop consumer-directed community-based (as opposed to congregate segregated choices such as traditional nursing homes) long-term care options.^[16]



Elderly Man in front of Tesco Mall

Social and financial rights of elders

The Adult Protective Services provide services for older individuals, who have been abused, neglected or exploited. Recently, there has been efforts to research and address elder abuse issues through passage of laws such as Elder Abuse Prevention and Prosecution Act of 2017.

One of the earliest efforts by the US federal government to protect financial rights of elders was the establishment of Social Security benefits via the Social Security Act in 1935, providing income to retired individuals who qualify. The law was amended in 1972 to add Supplemental Security Income, which provides cash assistance to individuals, 65 years of age or older. The passage of The Age Discrimination in Employment Act of 1967 further protected the financial rights of older people by prohibiting employers from discriminating against people who are 40 years of age or older.^[4]

Health, healthcare, and medico-legal rights of older adults

One area where older adults experience particular vulnerability, is in healthcare and health decision-making. Worsening chronic illnesses, cognitive impairment, and limitations in functional status are all examples of changes that occur later in life, that can increase an older adult's level of dependency on a caregiver. This dependency leaves elderly people at a greater risk of experiencing abuse. According to the

National Institute on Aging, elder abuse can occur when older adults are living away from home in a skilled nursing facility or assisted living facility, or even when they are living with family.^[17] While abuse can occur to anyone, older adults with impaired cognitive function due to dementia or with great medical need, are especially vulnerable. Signs of abuse include a disheveled appearance, unexplained bruises or scars, unexplained weight loss, recurrent bed sores, and lacking in supportive medical devices like glasses or hearing aides.^[17]

While elder abuse continues to be an ongoing problem, there are some protections in place for older adults. One of such protection is the Long-Term Care Ombudsman Program, which advocates for the rights of adults in nursing homes, assisted living facilities, and other residential settings.^[18] Despite such programs, there is still much progress to be made in defending the rights of elder adults.

The COVID-19 pandemic exposed previously ignored vulnerabilities in nursing homes, particularly their risk of exposing elder adults to avoidable injury and illness. According to a 2021 report by the Human Rights Watch, over 178,000 COVID-19 deaths were linked to nursing facilities comprising up to 40 percent of total deaths in the United States.^[19] These deaths have been attributed to long-standing staffing shortages and resident neglect.

Milestones in elder rights development

Year	Event	
1920	<u>Civil Service Retirement Act (US)</u> ^[20]	Retirement system for government employees
1935	<u>Social Security Act (US)</u> ^[20]	Old Age Assistance/Old Age Survivors Insurance
1958	<u>American Association of Retired Persons</u> founded ^[21]	
1965	<u>Older Americans Act (US)</u> ^[20]	Established the Administration on Aging
1970	<u>Gray Panthers</u> founded	
1970	<u>Age Concern England</u> launched	
1974	<u>Age UK</u> created	
1994	<u>National Elder Law Foundation</u> founded (US) ^[15]	Certifies attorneys for elder law practice
1999	<u>International Year of Older Persons</u> ^[20]	
2002	MIPAA - Madrid International Plan of Action on Aging ^[22]	The global policy document regarding aging
2003	<u>Medicare Prescription Drug, Improvement, and Modernization Act (US)</u> ^[20]	
2003	<u>Scottish Senior Citizens Unity Party</u> formed	
2010	<u>Affordable Care Act (US)</u> ^[20]	
2011	UN Open Ended Working Group on Aging (OEWG) ^[23]	The UN forum discussing elder rights

Notable elder rights activists

- [Ethel Percy Andrus](#) – founder of [AARP](#)^[24]
- [David Hobman](#) – creator of [Age Concern England](#)^[25]
- [Maggie Kuhn](#) – founder of the [Gray Panthers](#)
- [Paul Kuniholm](#) – elder rights artist
- [Gordon Lishman](#) – creator of [Age UK](#)
- [Helen Levitov Sobell](#)
- [John Swinburne](#) – founder of the [Scottish Senior Citizens Unity Party](#)
- [Valerie Taylor](#)
- [Francis Townsend](#) – creator of the [Townsend Plan](#)

Specific jurisdictions

- [Elder law in India](#)
- [Elder law \(United States\)](#)
 - [Elder law \(Massachusetts\)](#)

See also

- [Activist ageing](#)
- [Age Concern](#), banner title used by a number of NGOs around the world
- [Elder abuse](#)
- [Nursing home residents' rights](#)

References

1. Kohn, Nina (2010). "The Lawyer's Role in Fostering an Elder Rights Movement" (<https://web.archive.org/web/20220713000239/http://web.wmitchell.edu/law-review/wp-content/uploads/Volume37/documents/Kohn.pdf>) (PDF). *William Mitchell Law Review*. **37**: 51. Archived from the original (<http://web.wmitchell.edu/law-review/wp-content/uploads/Volume37/documents/Kohn.pdf>) (PDF) on July 13, 2022. Retrieved 13 May 2015.
2. "Your Rights – Elder Abuse" (<http://seniorsrights.org.au/your-rights/>). *Senior Rights Victoria*. Retrieved 13 May 2015.
3. "Protecting Elders' Rights" (<https://www.pbs.org/wgbh/caringforyourparents/handbook/legalissues/protectingeldersrights.html>). *Caring for Your Parents*. PBS. 2008.
4. "The Age Discrimination in Employment Act of 1967 | U.S. Equal Employment Opportunity Commission" (<https://www.eeoc.gov/statutes/age-discrimination-employment-act-1967>). *www.eeoc.gov*. Retrieved 2021-09-20.
5. "OHCHR | United Nations Principles for Older Persons" (<https://www.ohchr.org/en/professionalinterest/pages/olderpersons.aspx>). *www.ohchr.org*. Retrieved 2021-09-14.
6. "World Population Prospects - Population Division - United Nations" (<https://web.archive.org/web/20210122210505/https://population.un.org/wpp/Publications/>). *population.un.org*. Archived from the original (<https://population.un.org/wpp/Publications/>) on 2021-01-22. Retrieved 2021-09-14.

7. "United Nations Open-ended Working Group on strengthening the protection of the human rights of older persons" (<https://social.un.org/ageing-working-group/index.shtml>). *social.un.org*. Retrieved 2021-09-14.
8. Officer, Alana; Thiagarajan, Jotheeswaran Amuthavalli; Schneiders, Mira Leonie; Nash, Paul; de la Fuente-Núñez, Vânia (January 2020). "Ageism, Healthy Life Expectancy and Population Ageing: How Are They Related?" (<https://www.ncbi.nlm.nih.gov/pmc/articles/PMC7246680>). *International Journal of Environmental Research and Public Health*. **17** (9): 3159. doi:10.3390/ijerph17093159 (<https://doi.org/10.3390%2Fijerph17093159>). PMC 7246680 (<https://www.ncbi.nlm.nih.gov/pmc/articles/PMC7246680>). PMID 32370093 (<https://pubmed.ncbi.nlm.nih.gov/32370093>).
9. Lamont, R. A.; Swift, H. J.; Abrams, D. (2015). "A review and meta-analysis of age-based stereotype threat: Negative stereotypes, not facts, do the damage" (<https://www.ncbi.nlm.nih.gov/pmc/articles/PMC4360754>). *Psychology and Aging*. **30** (1): 180–193. doi:10.1037/a0038586 (<https://doi.org/10.1037%2Fa0038586>). PMC 4360754 (<https://www.ncbi.nlm.nih.gov/pmc/articles/PMC4360754>). PMID 25621742 (<https://pubmed.ncbi.nlm.nih.gov/25621742>).
10. Cohen, E. S.; Whittington, F. J. (2013-02-01). "Old and Bold: Civil Rights in Late Life" (<http://academic.oup.com/gerontologist/article-lookup/doi/10.1093/geront/gns157>). *The Gerontologist*. **53** (1): 178–185. doi:10.1093/geront/gns157 (<https://doi.org/10.1093%2Fgeront%2Fgns157>). ISSN 0016-9013 (<https://search.worldcat.org/issn/0016-9013>).
11. Walls, David. "Elders Rights Movement" (<http://www.sonoma.edu/users/w/wallsd/elders-rights-movement.shtml>). Sonoma State University. Retrieved 13 May 2015.
12. Pratt, Henry (1976). *The Gray Lobby: Politics of Old Age* (<https://archive.org/details/graylobby0000prat>). University of Chicago Press. ISBN 978-0-226-67917-4.
13. Laursen, Eric. "Gray Panthers" (<https://web.archive.org/web/20150612001708/http://www.globalaging.org/elderrights/us/2009/panthers.htm>). *Global Action on Aging*. Archived from the original on 12 June 2015. Retrieved 13 May 2015.
14. "Global Accomplishments | GRAY PANTHERS NYC" (https://web.archive.org/web/20210913173543/https://www.graypanthersnyc.org/about_us/global-accomplishments.html). *www.graypanthersnyc.org*. Archived from the original (https://www.graypanthersnyc.org/about_us/global-accomplishments.html) on 2021-09-13. Retrieved 2021-09-13.
15. "About NELF" (<https://web.archive.org/web/20150520212744/http://www.nelf.org/about-nelf>). National Elder Law Foundation. Archived from the original (<http://www.nelf.org/about-nelf>) on 20 May 2015. Retrieved 13 May 2015.
16. "Elder Rights Background Documents" (<https://web.archive.org/web/20150711225934/http://www.globalaging.org/elderrights/us/index.htm>). *Global Action on Aging*. Archived from the original on 11 July 2015. Retrieved 13 May 2015.
17. "Elder Abuse" (<https://web.archive.org/web/20170728010344/https://www.nia.nih.gov/health/elder-abuse>). *National Institute on Aging*. Archived from the original (<http://www.nia.nih.gov/health/elder-abuse>) on July 28, 2017. Retrieved 2021-09-20.
18. "Administration on Aging | ACL Administration for Community Living" (<https://acl.gov/about-acl/administration-aging>). *acl.gov*. Retrieved 2021-09-20.
19. "US: Concerns of Neglect in Nursing Homes" (<https://www.hrw.org/news/2021/03/25/us-concerns-neglect-nursing-homes>). *Human Rights Watch*. 2021-03-25. Retrieved 2021-09-13.
20. "Historical Evolution of Programs for Older Americans" (https://web.archive.org/web/20130506132435/http://www.aoa.gov/AoA_programs/OAA/resources/History.aspx). US Dept of Health & Human Services. Archived from the original (https://www.aoa.gov/AoA_programs/OAA/resources/History.aspx) on 6 May 2013. Retrieved 13 May 2015.
21. "AARP History" (<https://web.archive.org/web/20150905055404/http://www.aarp.org/about-aarp/info-2009/History.html>). American Association of Retired Persons. Archived from the original (<http://www.aarp.org/about-aarp/info-2009/History.html>) on 5 September 2015. Retrieved 13 May 2015.

22. "Madrid International Plan of Action on Ageing | United Nations For Ageing" (<https://www.un.org/development/desa/ageing/madrid-plan-of-action-and-its-implementation.html>). *www.un.org*. Retrieved 2018-03-19.
23. "United Nations Open-ended Working Group on strengthening the protection of the human rights of older persons" (<https://social.un.org/ageing-working-group/>). *social.un.org*. Retrieved 2018-03-19.
24. "Ethel Andrus" (<https://web.archive.org/web/20120123121325/http://www.nwhm.org/education-resources/biography/biographies/ethel-andrus/>). *National Women's History Museum*. Archived from the original (<http://www.nwhm.org/education-resources/biography/biographies/ethel-andrus/>) on 23 January 2012. Retrieved 13 May 2015.
25. Barker, Jonathan (16 January 2004). "David Hobman: Energetic reformer who changed society's perception of older people" (<https://www.theguardian.com/society/2004/jan/16/charitymanagement.guardianobituaries>). *The Guardian*. Retrieved 13 May 2015.

Retrieved from "https://en.wikipedia.org/w/index.php?title=Elder_rights&oldid=1308713026"